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Case Number: 26NNCV01286 Hearing Date: August 7, 2026 Dept: P

[TENTATIVE] ORDER SUSTAINING DEFENDANT'S
DEMURRER WITH 30 DAYS' LEAVE TO AMEND

I. INTRODUCTION

On February

20, 2026, Plaintiffs Laura Lasky, Ilana Mayes, Michael Cali, and Jeffrey James

(collectively, "Plaintiffs") filed the instant action against

Defendant 5312 Radford Ave 29, LLC ("Defendant") seeking declaratory

relief concerning Plaintiffs' alleged rights under the Los Angeles Rent

Stabilization Ordinance ("RSO") to reoccupy their former rental units

following the property's renovation.

On May 13, 2026, Defendant filed the instant demurrer. On

July 27, 2026, Plaintiffs filed an opposition. Defendant filed a reply on July

31, 2026.

Meet and confer

Pursuant to Code of Civil Procedure

section 430.41, subdivision (a), the demurring party is required to meet and

confer with the party who filed the pleading at least five days before the

responsive pleading is due. This must occur in person, telephone or by video

conference with the aim of resolving any objections raised in the demurrer.

Additionally, the demurring party must file and serve a declaration detailing

the meet and confer efforts. It should be noted, however, that the failure to

meet and confer is not itself grounds for sustaining or overruling a demurrer

or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd.

(a)(4), 435.5, subd. (a)(4).)

Here, Defendant's counsel declares that, on April 8, 2026, counsel emailed Plaintiffs' counsel identifying the bases for the proposed demurrer and requesting to meet and confer. After receiving no response, counsel sent a follow-up email on April 13, 2026, but again received no response. (Goldstein Decl., ¶ 2.)

The Court finds these efforts insufficient to satisfy the meet and confer requirements of Code of Civil Procedure section 430.41. Nevertheless, the Court elects to consider the merits of the demurrer.

II. LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) “A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her.” (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) “The objection of uncertainty does not go to the failure to allege sufficient facts.” (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) “It goes to the doubt as to what the pleader

means by the facts alleged.” (Id.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (People v. Lim (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

III. ANALYSIS

Defendant

demurs to the Complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action for declaratory relief and is uncertain. (Notice, p. 1.) The Court address each below.

Failure to state a cause of action

Defendant contends the Complaint

fails to allege an actual, present controversy because Plaintiffs seek a declaration based on speculative future events, namely, Defendant's potential future leasing decisions once renovations are complete. Defendant characterizes the Complaint as seeking declaratory relief based on hypothetical future conduct rather than an existing dispute concerning the parties' present legal rights and obligations. (Demurrer, pp. 4-7.)

“A complaint for declaratory relief

must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or

obligations of a party.” (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.) “The ‘proper subjects’ of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes.” (Ibid.) “The ‘actual controversy’ requirement concerns the existence of present controversy relating to the legal rights and duties of the respective parties pursuant to contract (Code Civ. Proc., § 1060), statute or order.” (Ibid.)

Whether an actual controversy exists depends, in part, on whether the dispute is ripe for judicial determination. A controversy is ripe when the facts have sufficiently congealed to permit an intelligent and useful decision, rather than an advisory opinion based upon hypothetical facts. (Pacific Legal Foundation v. California Coastal Com. (1982) 33 Cal.3d 158, 170.) In determining ripeness, courts consider “(1) whether the dispute is sufficiently concrete to make declaratory relief appropriate, and (2) whether withholding judicial consideration will impose a hardship on the parties.” (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 540.) A dispute is not sufficiently concrete where resolution would require the court to speculate regarding hypothetical future events. (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 410.)

Here, as currently pleaded, the Complaint does not allege a sufficiently concrete controversy to support declaratory relief. Plaintiffs allege that they have not been evicted from the subject property, have not surrendered possession of their units, and therefore continue to possess rights under the RSO. (Complaint, ¶ 20.) Plaintiffs further allege Defendant is repairing the subject property, the units are expected to become available within the coming weeks or months, and Defendant has failed to acknowledge Plaintiffs’ claimed rights to possession and other rights under the RSO. (Complaint, ¶¶ 9, 29.) Based on these allegations, Plaintiffs seek a declaration that Defendant must offer them the first right to re-rent their respective apartments at LAHD-approved adjusted rental rates. (Complaint, ¶ 21.)

However, the Complaint does not allege that Defendant has actually denied Plaintiffs’ claimed rights or otherwise indicated it does not intend to comply with the RSO. At this point, the dispute has not sufficiently crystallized because it remains unclear whether Defendant intends to recognize Plaintiffs’ claimed rights or whether Defendant will take a position contrary to the RSO. Without such allegations, the Court is left to speculate about a future dispute that may never

materialize. Plaintiff's declaratory relief claim essentially seeks an order that Defendant follow the law and obey the RSO.[1]

That said, the Court cannot conclude that amendment would be futile. Plaintiffs may be able to allege additional facts showing Defendant has affirmatively denied their claimed rights under the RSO or otherwise indicated it will not honor those rights once the units become available. Such allegations would present a sufficiently concrete controversy for declaratory relief. Therefore, the demurrer is SUSTAINED with 30 days' leave to amend.

The Court orders the parties to meet and confer within 10 calendar days so that Defendant may explain its position on Plaintiff's claimed rights under the RSO.

Uncertainty

As to uncertainty, Defendant argues the Complaint fails to identify the specific legal rights and duties at issue or any present controversy between the parties. Instead, Defendant contends Plaintiffs merely allege that Defendant has "failed to acknowledge Plaintiffs' rights to possession and other rights pursuant to the RSO," without identifying any present violation of law or concrete dispute. (Demurrer, pp. 7-8.)

The Court finds that the Complaint is not uncertain. A demurrer based on uncertainty only applies where the complaint is so bad that a defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Here, although the Complaint could be pleaded with greater specificity, it sufficiently apprises Defendant of the nature of the dispute. The Complaint identifies the parties' alleged dispute and seeks a declaration regarding those rights. Indeed, Defendant's demurrer demonstrates that it understands the nature of Plaintiffs' claim and is able to respond to it.

Thus, the Court OVERRULES the demurrer for uncertainty.

IV. ORDER

The Court SUSTAINS

the demurrer with 30 days' leave to amend. The Court orders the parties to meet and confer with 10 calendar days so Defendant can clarify its position on Plaintiff's claimed rights under the RSO.

Defendant is to give notice.

Dated: August 7, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[1]

One would think that it would be in Defendant's best interest to do so as failure to abide by the RSO could lead to the imposition of injunctive relief, civil penalties, compensatory damages, punitive damages and attorney's fees.